

3.—(1) This Act may be cited as the Cinematograph Film Production (Special Loans) Act, 1954, and shall be construed as one with the principal Act. Short title,
citation, etc.

(2) This Act and the Cinematograph Film Production (Special Loans) Acts, 1949 to 1952, may be cited together as the Cinematograph Film Production (Special Loans) Acts, 1949 to 1954.

CHAPTER 16

An Act to amend the Pneumoconiosis and Byssinosis Benefit Act, 1951, by applying it to diseases in respect of which compensation was payable under the Workmen's Compensation Act, 1925, and by making provision for the payment of benefit for partial disablement, and for purposes incidental thereto. [9th March, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Pneumoconiosis and Byssinosis Benefit Act, 1951 (in this Act referred to as "the 1951 Act") shall apply to any disease in respect of which compensation was payable under the Workmen's Compensation Act, 1925, by virtue of section forty-three of that Act, as well as to pneumoconiosis and byssinosis. Extension to
other diseases.
15 & 16 Geo. 6.
& 1 Eliz. 2, c. 4.
15 & 16 Geo. 5.
c. 84.

(2) A scheme under the 1951 Act shall not provide for the payment of benefit in respect of a disease to which the Act is applied by this section, unless the Minister of Pensions and National Insurance is satisfied that the disease is of such a nature that there are likely to be cases where a person suffers from it and it is due to the nature of his employment, but where it does not manifest itself till more than twelve months after he has ceased to be engaged in the employment.

(3) In paragraph (b) of subsection (1) of section two of the 1951 Act (under which a scheme cannot provide for the payment of benefit in respect of a person's disablement or death if compensation in respect of it has been paid or is payable by virtue of a scheme made or certified under the Workmen's Compensation Acts), for the words "by virtue of any scheme made or certified under the Workmen's Compensation Acts" there shall be substituted the words "under the Workmen's Compensation Acts or by virtue of a scheme made or certified thereunder".

Extension to
cases of
partial
disablement.

2.—(1) In paragraph (a) of subsection (1) of section one of the 1951 Act (under which a scheme may provide for paying benefit to persons totally disabled by a disease to which the Act applies) the word “totally” shall be omitted; but—

(a) the restrictions which may be imposed by a scheme in respect of the persons to whom benefit is payable under the scheme in respect of their disablement shall include restrictions relating to the nature or degree of disablement; and

(b) in subsection (2) of section three of the 1951 Act after the words “the weekly rate of an allowance in respect of disablement shall be forty shillings” there shall be inserted the words “or, if the disablement is not total, twenty shillings”.

(2) Without prejudice to the provision made by the 1951 Act with respect to the determination of questions, a scheme under that Act may, where it appears to the Minister of Pensions and National Insurance expedient so as to avoid the introduction or working of the scheme being impeded, provide that, in any circumstances prescribed by the scheme, a person shown to be disabled by a disease shall be presumed for the purposes of the scheme to have been disabled by that disease for such period previously, and the disablement to have been during that period or any part of it of such a nature and degree, as may be so prescribed.

9 & 10 Geo. 6.
c. 62.

(3) For paragraph (a) of subsection (1) of section two of the 1951 Act (under which a scheme cannot provide for the payment of benefit in respect of a person's disease if he has been employed in certain employments since the commencement of the National Insurance (Industrial Injuries) Act, 1946) there shall be substituted the following paragraph:—

“(a) if he or any other person is or has been entitled to benefit in respect of the disablement or death under the National Insurance (Industrial Injuries) Act, 1946;”.

Financial
provisions.

3. There shall be paid out of moneys provided by Parliament any increase attributable to this Act in the expenses of the Minister of Pensions and National Insurance or any other Government department which are so payable under section sixty of the National Insurance (Industrial Injuries) Act, 1946, as applied by virtue of subsection (1) of section four of the 1951 Act.

Short title,
citation
and repeal.

4.—(1) This Act may be cited as the Industrial Diseases (Benefit) Act, 1954, and this Act and the 1951 Act may be cited together as the Industrial Diseases (Benefit) Acts, 1951 and 1954.

(2) In subsection (2) of section six of the 1951 Act there shall be repealed in paragraph (a) the words from “in relation to” to “section two of this Act” and the whole of paragraph (b).

